

Resolution

ENROLLED HOUSE
RESOLUTION NO. 1047

By: Sneed

A Resolution emphasizing the State's interest in CompSource Mutual Insurance Company; recognizing the existence of CompSource Mutual Insurance Company as an entity ensuring compensation under current workers' compensation law; emphasizing that all monies and assets of CompSource Mutual Insurance Company are held in trust; and emphasizing the public's interest in CompSource Mutual Insurance Company.

WHEREAS, CompSource Oklahoma was allowed by the Legislature to become a mutual insurance company, CompSource Mutual Insurance Company, effective January 1, 2015, for the purpose of insuring employers against liability for compensation under the Administrative Workers' Compensation Act, the Oklahoma Workers' Compensation Code, and previous workers' compensation laws; and

WHEREAS, because the State Insurance Fund, the predecessor of CompSource Mutual Insurance Company, was created with taxpayer funds, the State of Oklahoma continues to have an important and vital interest in the operation of the company; and

WHEREAS, CompSource Mutual Insurance Company exists for the purpose of assuring compensation for the persons entitled thereto provided by the workers' compensation law, and for the further purpose of insuring persons, firms, and corporations against loss, expense, or liability by reason of bodily injury, death by accident, occupational disability, or occupational disease suffered by employees, for which the insured may be liable or have assumed liability; and

WHEREAS, CompSource Mutual Insurance Company may further provide insurance for employers against liability incurred as the result of injuries sustained by employees engaged in employment subject to the Longshore and Harbor Workers' Compensation Act, 33 U.S.C., Section 901 et seq., or employees engaged in employment subject to Title IV of the Federal Coal Mine Health and Safety Act of 1969 as amended by the Black Lung Benefits Act of 1972, as enacted or as may be amended by the Congress of the United States; and

WHEREAS, the Supreme Court of Oklahoma has determined that the creation of CompSource Mutual Insurance Company, as a successor to the State Insurance Fund and CompSource Oklahoma, was a proper use of legislative power under the Constitution of Oklahoma; and

WHEREAS, the Supreme Court found, and the Legislature affirms, that all monies and other assets of CompSource Mutual Insurance Company are held in trust for the benefit of the insured employers or policyholders.

NOW, THEREFORE, BE IT RESOLVED BY THE HOUSE OF REPRESENTATIVES OF THE 2ND SESSION OF THE 60TH OKLAHOMA LEGISLATURE:

THAT it is a matter of public interest to establish public policy that Oklahoma maintains a statutory workers' compensation system in which employers may obtain insurance to cover their liability for benefits for workers injured in the course of their employment as prescribed by the workers' compensation laws.

THAT the Insurance Commissioner take such actions as are consistent with the provisions of this measure.

THAT the Oklahoma Legislature is committed to results which are consistent with the provisions of this measure including, but not limited to, statutory enactment or modification of administrative rules.

THAT CompSource Mutual can only transition into a mutual insurance holding company if it pays every policyholder their fair and equitable ownership interest as owners and trustees of CompSource Mutual.

THAT CompSource Mutual Insurance Company is hereby prohibited from pursuing any means to change its corporate structure from the mutual insurance company previously allowed by the Legislature except for the change to a mutual insurance holding company.

Adopted by the House of Representatives the 7th day of April,
2026.

Presiding Officer of the House of
Representatives

OFFICE OF THE SECRETARY OF STATE

Received by the Office of the Secretary of State this _____
day of _____, 20 _____, at _____ o'clock _____ M.
By: _____